



CHAPTER xxxv.

An Act to extend the time limited for the construction of waterworks by the Loughborough Corporation Act 1897 and to enable the Corporation to purchase further lands and to borrow further moneys for their waterworks and for other purposes. A.D. 1905.
[30th June 1905.]

WHEREAS the borough of Loughborough in the county of Leicester (herein-after referred to as "the borough") is a municipal borough incorporated by charter granted in the year one thousand eight hundred and eighty-eight creating into a municipal borough a district consisting of the existing township and parish of Loughborough:

And whereas the borough is under the government of the mayor aldermen and burgesses thereof (herein-after referred to as "the Corporation") and the Corporation acting by the council of the borough are the sanitary authority of the borough with the powers and obligations of an urban authority:

And whereas by the Loughborough Corporation Act 1897 the Corporation were authorised to construct a reservoir in the township and parish of Whitwick and parishes of Shepshed and Charley in the county of Leicester and an aqueduct conduit or line of pipes in the said parish of Shepshed and other works in connexion therewith more particularly referred to in the said Act:

And whereas it is expedient that the time limited by the said Act for the completion of such reservoir and other works should be extended in manner herein-after mentioned:

And whereas it is expedient that further powers should be conferred upon the Corporation with reference to the purchase

A.D. 1905. of lands and the borrowing of money and otherwise as hereinafter in this Act contained:

And whereas the objects of this Act cannot be obtained without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purchase of lands and for the purposes of their waterworks and such estimates amount to eighty thousand pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the fifth day of December one thousand nine hundred and four after ten days' clear notice by public advertisement of such meeting and of the purposes thereof in the *Loughborough Monitor and News* a local newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the second day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the first schedule of the *Borough Funds Act 1903* have been observed:

And whereas a plan showing the lands to be taken under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act and describing those lands were duly deposited with the clerk of the peace for the county of Leicester and are in this Act referred to as the deposited plan and book of reference:

[5 EDW. 7.] *Loughborough Corporation Act, 1905.* [Ch. xxxv.]

May it therefore please Your Majesty that it may be enacted A.D. 1905.
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

1. This Act may be cited as the Loughborough Corporation Short title.
Act 1905.

2. The following Acts or parts of Acts (as far as the same Incorporation of Acts.
are applicable for the purposes and are not inconsistent with
the provisions of this Act) are hereby incorporated with this
Act (namely):—

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845):

The Waterworks Clauses Act 1847 (except the provisions
with respect to the amount of profit to be received by
the undertakers when the waterworks are carried on for
their benefit and except section 83 and except the words
“ with the consent in writing of the owner or reputed
“ owner of any such house or of the agent of such owner ”
in the forty-fourth section of that Act):

The Waterworks Clauses Act 1863.

3. In construing this Act the following words and expres- Interpreta-
tion.
sions have the meanings hereby assigned to them respectively
unless there be something in the subject or context repugnant
to such construction (that is to say):—

“The borough” means the municipal borough of Lough-
borough;

“Corporation” means the mayor aldermen and burgesses
of the borough;

“Council” means the town council of the borough;

“Town clerk” and “borough treasurer” mean respectively
the town clerk and borough treasurer of the borough;

“District fund” and “general district rate” mean respec-
tively the district fund and general district rate of the
borough;

“The water limits” means the limits within which the
Corporation are authorised to supply water.

A.D. 1905.

Extension of
time for com-
pletion of
waterworks.

4. The period limited by the Loughborough Corporation Act 1897 (herein-after called "the Act of 1897") for the completion of the waterworks authorised by such Act is hereby extended for a period of four years from the third day of June one thousand nine hundred and five and if the said waterworks be not completed within that period then on the expiration of that period the powers granted by the Act of 1897 for the making and completion thereof or otherwise in relation thereto shall cease except as to such of them as shall be then completed but nothing in this Act shall restrict the Corporation from extending enlarging reduplicating altering reconstructing or removing any of their works mains or pipes from time to time as occasion may require.

As to repay-
ment of
money bor-
rowed under
Act of 1897.

5. Section 25 of the Act of 1897 the marginal note whereof is "As to repayment of borrowed money" shall be read and have effect as if the words "or until the third day of June 1907" had been substituted for the words "or the expiration of the time by this Act limited for the completion thereof."

Purchase
of lands.

6. The Corporation may for the purposes of their water-works and waterworks undertaking enter upon take and use all or any of the lands shown on the deposited plan and described in the deposited book of reference herein-after described (namely) :—

Certain lands in the parish of Nanpantan in the rural district of Loughborough situate on the east side of the reservoir and filter beds of the Corporation being a portion of the field numbered on the Ordnance map (scale $\frac{1}{2500}$ edition 1901) 101 in that parish which lands are bounded on the north partly by filter beds of the Corporation and partly by the spinny numbered on the said Ordnance map 72 in the said parish on the south and east by other portion of the said field No. 101 and by the said spinny and on the west by the said reservoir of the Corporation.

Period for
compulsory
purchase of
lands.

7. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to
take ease-
ments &c. by
agreement.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors

have an interest) required for the purposes of this Act in over A.D. 1905.
or affecting any such lands and the provisions of the Lands
Clauses Acts with respect to lands and rentcharges so far as
the same are applicable in this behalf shall extend and apply
to such grants and to such easements rights and privileges as
aforesaid respectively.

9. If there be any omission misstatement or wrong descrip- Correction of
tion of any lands or of the owners lessees or occupiers of any errors &c. in
lands shown on the deposited plan or specified in the deposited plan and
book of reference the Corporation after ten days' notice to the book of
owners lessees and occupiers of the lands in question may reference.
apply to two justices acting for the county of Leicester (not
being members of the Council) for the correction thereof and
if it appear to the justices that the omission misstatement or
wrong description arose from mistake they shall certify the same
accordingly and they shall in their certificate state the particulars
of the omission and in what respect any such matter is mis-
stated or wrongly described and such certificate shall be deposited
with the clerk of the peace for the county of Leicester and a
duplicate thereof shall also be deposited with the town clerk
Such certificate and duplicate respectively shall be kept by such
clerk of the peace and town clerk with the other documents to
which the same relate and thereupon the deposited plan and
book of reference shall be deemed to be corrected according
to such certificate and it shall be lawful for the Corporation
to take the lands and execute the works in accordance with
such certificate.

10. Notwithstanding anything in the Lands Clauses Acts Power to
or in any other Act or Acts to the contrary the Corporation may retain sell
retain hold and use for such time as they may think fit and may &c. lands.
from time to time sell lease exchange or otherwise dispose of in
such manner and for such consideration and purpose and on such
terms and conditions as they may think fit and in case of sale
either in consideration of the execution of works or of the
payment of a gross sum or of an annual rent or of any payment
in any other form any lands or any interest therein acquired by
them under this Act and may sell exchange or dispose of any
rents reserved on the sale exchange lease or disposition of such
lands and may make do and execute any deed act or thing
proper for effectuating any such sale lease exchange or other
disposition and on any exchange may give or take any money
for equality of exchange.

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As to breaking up of streets.

11. For the purposes of supplying water beyond the water limits in pursuance of any powers vested in them the Corporation may within such water limits exercise all the powers conferred on undertakers by the sections of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Corporation may refuse to supply electrical energy and gas in certain cases.

12. The Corporation may refuse to supply electrical energy and gas to any person whose payments for the supply of electrical energy or gas or for the hire of any meters used in connexion with electrical energy or gas are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply of electrical energy or gas or for the hire of any such meters used on the premises in respect of which such supply is demanded or in respect of other premises.

As to amendment of rates.

13. Where in pursuance of section 38 of the Poor Law Amendment Act 1868 the occupier of any new house or other building shall be entered in the poor rate book the Corporation or a person nominated by them for the purposes of this section may make a similar entry in the general district rate book of the Corporation and such occupier shall thereupon be deemed to be rated to the current general district rate from the date of the last-mentioned entry and shall be liable to pay the sum assessed to that rate (less a proportionate sum for the time which shall have elapsed from the making of the current rate to the date of the last-mentioned entry) in like manner and with the like power of appeal as if he had been rated for the same when such general district rate was made and the power to rate owners instead of occupiers in certain cases and the provision as to the assessment of certain property on a reduced estimate and other the provisions of section 211 of the Public Health Act 1875 shall so far as the same are applicable apply to the assessment authorised by this section. The words "house or other building" in this section shall for the purposes thereof be deemed to include any rateable hereditament.

Power to borrow.

14. The Corporation may from time to time borrow at interest—

On the security of the district fund and general district rate and of the revenue of their water undertaking—

(A) For the purchase of land and for the construction of waterworks for or in connexion with the Blackbrook reservoir and the construction of filter

beds such sums as they may deem requisite not exceeding fifty-five thousand pounds; A.D. 1905.

- (B) For the construction of mains and other waterworks in connexion with their waterworks undertaking twenty-five thousand pounds:

On the security of the district fund and general district rate for payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" such sum as may be ascertained as herein-after provided:

Provided always that in case further moneys may be required for any of the aforesaid purposes the Local Government Board may from time to time at the request of the Corporation authorise them to borrow on the like securities such further sums for all or any of such purposes as the Local Government Board may from time to time think fit and the provisions of this Act shall mutatis mutandis apply to the further sums so borrowed:

And in calculating the amount which the Corporation may borrow under the provisions of any other enactment the amount which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted by the Corporation under this Act as if they were with necessary modifications re-enacted in this Act.

15. A person lending money to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss or non-application of the money lent or of any part thereof. Protection of lenders from inquiry.

16. All moneys borrowed by the Corporation under the authority of this Act without the sanction of the Local Government Board may be borrowed for any terms not exceeding the terms herein-after respectively mentioned from the date of the original loan (that is to say):— As to repayment of borrowed money.

As regards moneys borrowed for the purpose of paying the costs charges and expenses aforesaid five years from the date of the passing of this Act;

A.D. 1905.

As regards moneys borrowed for purposes (a) mentioned in the section of this Act the marginal note whereof is "Power to borrow" sixty years;

As regards moneys borrowed for purposes (b) mentioned in such section thirty years;

And all moneys borrowed by the Corporation under the authority of this Act with the consent of the Local Government Board may be borrowed for such term not exceeding sixty years as the Local Government Board may prescribe :

And subject as aforesaid all moneys borrowed by the Corporation under the authority of this Act shall be repaid by yearly or half-yearly instalments or by means of a sinking fund. Provided that when the payment shall not be made by equal instalments the instalment or instalments payable in each year together with the interest payable in such year in respect of the principal moneys owing of which such instalment or instalments form part shall in every year amount to the same sum but it shall not be obligatory on the Corporation to commence such repayment in the case of moneys borrowed for the purposes of waterworks until the reservoir by the Act of 1897 authorised has been brought into use for purposes of supply or until the third day of June one thousand nine hundred and seven whichever shall first occur.

Sinking
fund.

17. The Corporation in case they borrow any moneys on mortgage under this Act repayable by means of a sinking fund shall subject to the provisions of the section of this Act of which the marginal note is "As to repayment of borrowed money" within twelve months after borrowing the same and thenceforth annually on the same or some earlier day set apart as a sinking fund for the payment of such moneys out of the funds and rates on the security of which such moneys shall have been borrowed such equal annual sum or sums as will with accumulations by way of compound interest after a rate not exceeding three per centum be sufficient to pay within such a period as they may think fit (not exceeding the period in each case prescribed for the repayment thereof) the amount of the principal moneys so borrowed.

All sums so set apart and the income thereof shall from time to time be invested in any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money or on the

[5 Edw. 7.] *Loughborough Corporation Act, 1905.* [Ch. xxxv.]

security of mortgages bonds debentures debenture stock or other security (not including annuity certificates or certificates payable to bearer) of any municipal corporation in Great Britain (other than the Corporation) or of any other local authority within section 34 of the Local Loans Act 1875. A.D. 1905.

If and as often as the income derived from such investments is not equal to the income which would be derived therefrom at the rate per centum on which the equal annual payments to the sinking fund are based any deficiency shall be made good out of the funds and rates which are liable for the equal annual payments and if and as often as the income derived from such investments is in excess of the income which would be derived therefrom at the rate per centum on which the equal annual payments to the sinking fund are based any such excess may be applied as part of such equal annual payments.

The Corporation may at any time apply the whole or any part of the sinking fund in or towards the repayment of moneys for which such sinking fund is set aside in such order and manner as they deem proper Provided that in such case they pay into the sinking fund in each year afterwards and accumulate as herein-before prescribed until the whole of such moneys are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the rate per centum on which the equal annual payments to the sinking fund are based Provided also that whenever and so long as the securities in which such sinking fund is invested shall be not less in value at the market price of the day than the principal moneys then outstanding and to be paid off by means of such fund the Corporation may in lieu of investing the said yearly income apply the same in payment of interest on such principal moneys and may during such periods discontinue the payment to such sinking fund of the yearly sums required to be paid thereto.

18. Section 27 of the Act of 1897 is hereby repealed and in lieu thereof it is enacted as follows:--

- (1) The borough treasurer shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the Act of 1897 or this Act or in respect of any money

Return
respecting
sinking fund
to Local
Government
Board.

A.D. 1905.

raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such borough treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund under the Act of 1897 and this Act and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the borough treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court :

- (2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid by the Act of 1897 or this Act or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

19. If the Corporation out of the proceeds of the sale exchange or disposition of any lands acquired by the Corporation under the powers of this Act or out of moneys received by them by way of fine or premium on any lease of any such lands or other moneys received on capital account other than borrowed moneys repay any principal moneys borrowed by the Corporation under the powers of this Act the payments to the sinking fund may be reduced to such extent and on such terms as may from time to time be approved by the Local Government Board.

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Sinking fund
may be
adjusted.

20. The Corporation may from time to time borrow at interest on mortgage as aforesaid any money necessary for repaying any principal moneys borrowed under the foregoing provisions of this Act on the same becoming repayable or for paying off any part of any of such principal moneys as they can borrow at a lower rate of interest Provided as follows:—

Power to
re-borrow.

- (1) The time for repayment of any moneys so re-borrowed shall not be extended beyond the unexpired portion of the terms respectively in that behalf prescribed:
- (2) For the purpose of repayment all moneys so re-borrowed and the moneys originally borrowed shall be deemed the same loan:
- (3) The Corporation shall not re-borrow any money paid off by means of instalments or a sinking fund or appropriations or annual repayments or out of the proceeds of the sale of surplus lands or out of premiums or fines on leases or other moneys received on capital account not being borrowed moneys.

21. The Corporation if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures debenture stock or annuity certificates or partly in one way and partly in another.

Power to
borrow under
Local Loans
Act 1875.

Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same revenues funds and rates as they would be charged upon and paid out of if raised by mortgage under this Act and such revenues funds and rates shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

A.D. 1905. Every such loan shall be discharged within the respective periods prescribed by or under this Act.

The section of this Act of which the marginal note is "Sinking fund" shall apply to any sinking fund provided by the Corporation for the repayment of any moneys borrowed by them under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act.

Application
of money
borrowed.

22. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Application
of moneys
from sale &c.
of land.

23. The Corporation shall apply all moneys from time to time received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised or by way of fine or premium on any lease in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act the moneys so received by the Corporation shall be applied in or towards paying off any other moneys for the time being owing by the Corporation. Provided that any moneys so received by the Corporation when used to pay off borrowed moneys shall not be applicable to the payment of instalments or payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Corporation
not to regard
trusts.

24. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Application
of water
revenue to

25. The interest upon money borrowed for waterworks purposes under this Act and the requisite instalments approp-

[5 Edw. 7.] *Loughborough Corporation Act, 1905.* [Ch. xxxv.]

priations or sinking fund in respect of money so borrowed shall be provided and paid out of the money from time to time received by the Corporation in respect of their water undertaking (other than borrowed money and money properly applicable on capital account) *pari passu* with the like payments in respect of money borrowed under the Loughborough Local Board Act 1886 and section 42 of that Act shall be read and have effect accordingly.

A.D. 1905

payments in
respect of
moneys
borrowed.

26. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend and apply to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Application
of Municipal
Corporations
Act 1882 as
to accounts.

27. The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Power to
Local Go-
vernment
Board to
direct
inquiries.

The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

28. All powers rights and authorities given to the Corporation by this Act shall be deemed to be in addition to and not in derogation of any other powers rights or authorities conferred on them by section 51 subsections (1) (2) and (3) and sections 54 61 62 64 65 69 and 70 of the Public Health Act 1875 and the Municipal Corporations Act 1882 or any Act amending the same or any of them and the Corporation may exercise such other powers and authorities and shall be entitled to such other rights as if this Act had not been passed and section 37 of the Act of 1897 is hereby repealed.

Powers of
Act cumu-
lative.

29. The costs charges and expenses preliminary to and of and incidental to the preparing of and applying for and the obtaining and passing of this Act (including the costs incurred

Costs of Act.

A.D. 1905. — by the Corporation in or with the object of complying with the provisions of the Borough Funds Acts 1872 and 1903 with respect to the Bill for this Act) as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund and general district rate or out of any moneys borrowed under the authority of this Act.

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